Article 14 The New Doctrine of Non-Arbitrariness

LECTURE NOTES

Article 14: The New Doctrine of Non-Arbitrariness

E.P. Royappa, Menaka Gandhi, and the Golden Triangle

Constitutional Law — I / II

Evolution of Equality Jurisprudence in India

Faculty of Law

TABLE OF CONTENTS

1. The Journey from Classification to Non-Arbitrariness
2. E.P. Royappa v. State of Tamil Nadu (1973)
3. The Three Pillars Before Menaka Gandhi
4. Menaka Gandhi v. Union of India (1978)
5. Marbury v. Madison (1803) — The Origin of Judicial Review
6. Applying the Two Tests Under Article 14
7. Key Takeaways, Study Resources, and Examination Tips

SECTION 1

The Journey from Classification to Non-Arbitrariness

1.1 The Transition in Article 14 Jurisprudence

The understanding of Article 14 of the Constitution of India has undergone a profound transformation. The traditional approach required a demonstration of discrimination between classes. The modern approach, crystallized in *E.P. Royappa v. State of Tamil Nadu*, recognizes that arbitrariness is itself the antithesis of equality.

> **KEY PRINCIPLE: The Core Shift in Article 14 Analysis**
>
> **Old Rule:** Equality = Non-Discrimination (Reasonable Classification Test)
>
> **New Rule:** Equality = Non-Arbitrariness (Arbitrariness is the sworn enemy of equality)
>
> *Arbitrariness and equality are sworn enemies. Equality cannot be crippled, cabined, cribbed, or imprisoned in some doctrinal limitations.*

1.2 The Metaphor of the Golden Triangle

The constitutional jurisprudence evolved through a series of landmark cases that built upon one another, ultimately creating the Golden Triangle of Articles 14, 19, and 21.



The foundation of this Golden Triangle was laid in the **Bank Nationalization Case (R.C. Cooper v. Union of India)**, where the Supreme Court held that Articles 19 and 31 could not be read in isolation. This principle was later extended by Justice Bhagwati to encompass Articles 14, 19, and 21 in *Menaka Gandhi v. Union of India*.

SECTION 2

E.P. Royappa v. State of Tamil Nadu (1973)

Citation: AIR 1974 SC 555 (Judgment delivered in 1973)

Bench: P.N. Bhagwati, Chandrachud, and others.

Facts:

- E.P. Royappa was an IAS officer serving as the **Chief Secretary** of Tamil Nadu — the highest post for an IAS officer at the State level.
- He was removed from the post of Chief Secretary and was appointed as the **Deputy Chairman of the Planning Commission Board**.

- The Chairman of the Planning Commission is the **Chief Minister** at the State level (and the Prime Minister at the Centre).
- The Deputy Chairman is, therefore, the post immediately below the Chief Minister.
- Later, Royappa was made an **OSD (Officer on Special Duty)**.
- The State Government had issued an official order declaring that the OSD post and the Deputy Chairman post were **equivalent in rank and salary** to the Chief Secretary.
- Royappa challenged his removal from the Chief Secretary post as being **arbitrary and mala fide**, amounting to a violation of Article 14.

Arguments:

- **Petitioner (Royappa):** "My demotion has occurred. Though my salary is the same, the post of Chief Secretary is the most prestigious IAS post in the State. Removing me from that post and giving me another post with equal salary is not true equality."
- **State:** "Your salary is equal. You remain an IAS officer. We have declared through an official order that the posts are equivalent. Therefore, no discrimination has occurred."

The Petitioner's Response — Equality is Not Just Salary:

- Equality is not determined solely by salary.
- **Power, position, prestige, status, and respect** are essential components of equality.
- Example: Giving a Professor a salary of ₹5 lakh and assigning housekeeping work — that does not make the Professor a Vice-Chancellor. The nature of the work, the dignity of the post, and the respect associated with it are intrinsic to equality.

Decision:

- The Court **accepted** the principle that equality is not merely about salary — it encompasses power, prestige, and status.
- However, Royappa **lost the case** because he **could not prove arbitrariness**.
- As Justice Bhagwati observed: **"Mala fide and arbitrariness are easy to claim, but hardest to prove."**

Significance — The Birth of the Non-Arbitrariness Doctrine:

- Before this case, Article 14 required proving a **classification** and showing that the classification had no **rational nexus** with the object of the law.
- Justice Bhagwati recognized a fundamental flaw: if there is no comparator class (e.g., a person is uniquely targeted), discrimination cannot be proven, and Article 14 becomes **dormant** — unable to grant relief.
- **New Perspective:** Whether or not discrimination exists, if the State has **absolute discretionary power** or acts **arbitrarily**, it violates Article 14.
- **Arbitrariness and equality are sworn enemies.** Arbitrariness is the **antithesis** of equality.

2.1 What is Arbitrariness?

Definition: A decision based on **whims and fancies** — without reason, logic, or justification. It is the opposite of a **judicious** decision.

Characteristics of Arbitrary Action:

1. **Absence of Reason:** No logical basis or justification for the decision.
2. **Whims and Fancies:** "I liked it, so I did it" — purely subjective preference.
3. **Lack of Evidence:** Decision not supported by facts or circumstances.
4. **No Consideration of Relevant Factors:** Ignoring material circumstances.

Why Absolute Discretion Breeds Arbitrariness:

- **Human Weakness:** Every human being has preferences, biases, and inclinations. Someone likes chicken, someone likes biryani; someone likes a particular subject, someone likes another.
- When a person is given **absolute, unfettered discretionary power**, these personal preferences can influence decisions.
- This is why **discretion must be structured, guided, and non-arbitrary**. Discretion cannot be eliminated (governance requires it), but it must be exercised in a **just, fair, and reasonable** manner.
- **Example:** If a fire breaks out in the classroom, the teacher must have the discretion to evacuate students — everything cannot be pre-written. But that discretion must be exercised reasonably, not arbitrarily.

Proving Arbitrariness:

- Proving arbitrariness is extremely difficult — "as tough as proving the existence of oxygen without instruments."
- It requires demonstrating that the decision-maker acted without any rational basis, which is a high evidentiary burden.

SECTION 3

The Three Pillars Before Menaka Gandhi

Before the landmark decision in *Menaka Gandhi v. Union of India*, three crucial cases laid the groundwork for the expansion of fundamental rights.

3.1 Kharak Singh v. State of Uttar Pradesh (1962)

Year: 1962

Significance: This case, for the first time in Indian constitutional history, quoted an American case (*Munn v. Illinois*) and held a profoundly important principle.

> **IMPORTANT JUDICIAL OBSERVATION**

> **"Life does not mean mere animal existence."**
>
> "It includes all those things which make life meaningful and beautiful. It includes the right to develop all our faculties."

Impact:

- This expansive interpretation of the **Right to Life** under Article 21 became the foundation for numerous rights subsequently recognized by the Supreme Court.
- The right to privacy, the right to choose one's partner, the right to live with dignity — all trace their lineage to this principle.
- **Contemporary Application:** The Allahabad High Court recently scolded police for investigating the private life of a married couple, holding that the private life of a husband and wife is protected under Article 21.
- If this sentence had not been pronounced in *Kharak Singh*, the constitutional protection for love marriages, personal relationships, and individual autonomy would not exist today.

3.2 R.C. Cooper v. Union of India (1970) — The Bank Nationalization Case

Citation: Also known as the **Bank Nationalization Case**

Bench: 11 Judges — one of only a handful of such large benches in Indian constitutional history.

Facts:

- Prime Minister Indira Gandhi nationalized several banks (Andhra Bank, and others).
- The case was **not filed by the banks themselves**, but by **R.C. Cooper**, who was a **Director and Shareholder** of one of the nationalized banks.
- **Why did Cooper file and not the bank?** Because the Right to Property was under **Article 19(1)(f)**, and Article 19 rights are available only to **citizens**, not to **corporations** (which are not citizens). A bank, being a corporate entity, could not enforce Article 19. Its shareholder/director, being a citizen, could.

The Core Issue — Interconnection of Articles:

- The Government argued that the acquisition of property was under **Article 31** and that they were required to comply only with Article 31, not Article 19.
- The Government claimed Articles 19 and 31 were **separate and independent**.
- **Supreme Court's Ruling:** "Nothing doing! They cannot be separated. While acting under Article 31, you must also comply with Article 19(1)(f)."
- This established the principle that **fundamental rights are not watertight compartments** — they are interconnected and must be read together.

Foundation of the Golden Triangle:

- This case laid the **foundation stone** of the Golden Triangle.
- Justice Bhagwati later acknowledged in *Menaka Gandhi* that the interlinking of Articles 19 and 31 in *R.C. Cooper* was the precedent that compelled the Court to interlink Articles 14, 19, and 21.

3.3 Satwant Singh v. Union of India — The Passport Precedent

Background:

- Before 1967, India had **no Passport Act**. The issuance or denial of passports was entirely at the discretion of the executive.
- Satwant Singh was denied a passport by the Government. When he challenged this, the Government's response was essentially: "We denied it because we chose to deny it."
- **Supreme Court's Response:** The Court granted permission for the passport and directed the Government: "If you want to deny passports, make a law. Write down the reasons on which a passport can be denied."
- This led to the enactment of the **Passports Act, 1967**.

Section 10(3) of the Passports Act, 1967:

- This section authorized the Government to impound a passport **"without assigning any reason, in public interest."**
- This provision granted **absolute, arbitrary power** to the executive — precisely the kind of power that would later be challenged in *Menaka Gandhi*.

SECTION 4

Menaka Gandhi v. Union of India (1978)

Citation: AIR 1978 SC 597

Facts:

- Menaka Gandhi's passport was **impounded** by the Government of India under Section 10(3) of the Passports Act, 1967.
- Two constables arrived at her residence, stating: "Ministry of External Affairs — please surrender your passport."
- When she asked for the **reason**, the response was: "Orders from above. We don't know why."
- The Government invoked Section 10(3), which allowed impounding **"without assigning any reason."**
- Menaka Gandhi challenged this action as being **arbitrary** and violative of Articles 14, 19, and 21.

Government's Defense:

- "If we tell her the reason, she will **run away**!"
- "If we give notice that the passport is being impounded because of corruption or involvement in serious crimes, the person will flee the country."
- Therefore, the Government argued, prior notice and hearing were not feasible.

The Court's Innovation — Doctrine of Post-Decisional Hearing:

- The Supreme Court evolved the **Doctrine of Post-Decisional Hearing**.
- **Rule:** If there is urgency, the Government **may** impound the passport first. **However,** immediately thereafter, the Government must:
  1. Issue a **notice** to the passport holder stating the grounds.
  2. Provide an **opportunity of hearing**.
  3. If, after hearing, the Government is satisfied that the impounding was justified, it may continue. If not, the passport must be returned.
- This doctrine balances the **State's interest** in preventing flight with the **individual's right** to know the reasons and be heard.

Application of the Non-Arbitrariness Doctrine:

- The Court applied the principle from *E.P. Royappa*: **arbitrariness is the antithesis of equality**.
- Section 10(3) gave the Government **absolute, unguided discretion** to impound passports without reason — this was **arbitrary power**.
- Arbitrary power violates Article 14.

The Golden Triangle Formally Established:

- The Court held that **Articles 14, 19, and 21 are not mutually exclusive** — they are interconnected and must be read together.
- Any law depriving a person of **personal liberty** (Article 21) must also satisfy the requirements of **Article 14** (non-arbitrariness) and **Article 19** (reasonableness of restrictions).
- This interconnection is known as the **Golden Triangle** of the Constitution.

Outcome:

- **Menaka Gandhi did not get her passport back.** The case was ultimately dismissed on other grounds.
- This continues the pattern observed in landmark constitutional cases: *Marbury v. Madison* (no relief), *Kesavananda Bharati* (no relief), *E.P. Royappa* (no relief), *Menaka Gandhi* (no relief).
- **Landmark cases create principles; they do not always grant relief to the petitioner.**

SECTION 5

Marbury v. Madison (1803) — The Origin of Judicial Review

Year: 1803

Constitutional Context:

- The US Constitution was implemented in 1789. *Marbury v. Madison* was decided only 14-15 years later, at a time when constitutional principles were not yet settled.
- **No article of the US Constitution explicitly mentioned Judicial Review.** It was not written anywhere that the Supreme Court could review and invalidate actions of the President or Congress.

Facts:

- In the US, the Presidential election occurs in **November**, but the newly elected President takes the oath of office only in **January** of the following year.
- During this **lame-duck period**, the outgoing President (John Adams) and his party lost control of both the House of Representatives and the Senate.
- To preserve influence in at least one branch of government, the outgoing President appointed **40 judges** to the judiciary.
- **Commissions** (appointment documents) for all 40 were signed and sealed.
- However, due to the rush of vacating office, **some Commissions were not delivered** before the new President (Thomas Jefferson) took over at midnight.
- The new President ordered: "Throw these undelivered Commissions away! Our people will now make new appointments."
- **William Marbury** was one of the appointees whose Commission was not delivered. He filed a case directly in the **Supreme Court** seeking a **writ of mandamus** to compel the Secretary of State (Madison) to deliver his Commission.

The Three Issues Framed by the Court:

1. **Does Marbury have a right to the Commission?**
   - **Held: Yes.** When the President signed and the seal was affixed, Marbury's interest (right) was created. "Where there is a right, there is a remedy."
2. **Can the Supreme Court issue a mandamus to the President/Executive?**
   - **Held: Yes.** The Court delivered what is arguably the most famous sentence in American constitutional law.
3. **Does Marbury have the right to come to the Supreme Court under original jurisdiction?**
   - **Held: No.** Marbury's case did not fall within the categories specified in Article III, Section 2 of the US Constitution.

> **IMPORTANT JUDICIAL OBSERVATION**
>
> **Chief Justice John Marshall's Immortal Words:**
>
> *"It is emphatically the province and duty of the judicial department to say what the law is."*
>
> This single sentence established the power of **Judicial Review** — the authority of courts to interpret the Constitution and declare laws or executive actions unconstitutional.

The Doctrine of Constitutional Supremacy:

- Marbury argued that Section 13 of the **Judiciary Act of 1789** authorized him to come directly to the Supreme Court.
- The Court framed the crucial question: **The Constitution says one thing (you cannot come); an Act of Congress says another (you can come). Which shall prevail?**
- **Answer:** The Constitution shall prevail. Any law that contradicts the Constitution is **void**.
- Section 13 of the Judiciary Act was declared **unconstitutional and void** — the first time the US Supreme Court struck down a federal law.

The Political Genius of the Decision:

- The Court **established its power** of judicial review (a massive expansion of judicial authority).
- But it **did not order** the President to deliver the Commission (avoiding a direct confrontation that the President would likely have disobeyed).
- **Strategy:** "We will show our power, but we will not use it in this case." This ensured the decision would not be defied, and the precedent of judicial review would stand unchallenged.
- **Marbury did not get his Commission.** Another landmark case where the petitioner did not receive relief.

Timeline: The Paradox of Landmark Cases

```
1803 ----- 1973 ----- 1973 ----- 1978 ----->
  |          |          |          |
Marbury   E.P.       Kesavananda  Menaka
v.        Royappa    Bharati      Gandhi
Madison   No Relief  No Relief    No Passport

-------------------------------------------------
Landmark Principles Created – Relief to Petitioner Denied
```

SECTION 6

Applying the Two Tests Under Article 14

6.1 The Problem on Bearer Bonds and Black Money

The class was given a practical problem to solve, testing their understanding of Article 14 in the context of an economic policy.

Facts:

- The Government, to bring **black money** into the mainstream economy and fund the opening of medical colleges, issued **Bearer Bonds**.
- These bonds could be purchased by anyone, and the Government would **not ask for the source** of the money.
- After 10 years, the black money invested in these bonds would become **white money**.
- A **Public Interest Litigation** challenged this Act as violating Article 14, arguing:
  - This is an injustice to **honest taxpayers** who paid full income tax.
  - This encourages **dishonesty** — people will hoard black money expecting future amnesty schemes.
  - The classification between **dishonest** (black money holders) and **honest** (taxpayers) is arbitrary and violates Article 14.

The Correct Approach to Analysis:

1. **Presumption of Constitutionality:** Courts presume that a statute enacted by Parliament is constitutional. The burden of proof is on the challenger to prove otherwise.
2. **Judicial Deference to Economic Policy:** Courts generally do not intervene in policy decisions, especially **economic policy decisions**, unless they are manifestly arbitrary.
3. **Application of the Two Tests:**
   - **Test 1 — Intelligible Differentia:** Is there a clear distinction between those who have black money and those who do not? **Yes.** The classification is clear and intelligible.
   - **Test 2 — Rational Nexus with Object:** Does the classification have a rational connection with the objective of the Act? The objective is to bring black money into the economy, fund medical colleges, improve the doctor-patient ratio, and boost the economy. Allowing black money holders to invest in Bearer Bonds without declaring the source furthers this objective. **Yes, nexus exists.**
4. **Conclusion:** The Act is **constitutionally valid**. It satisfies both tests of reasonable classification, and as an economic policy measure, it deserves judicial deference.

> **KEY PRINCIPLES: Answering Article 14 Questions**
>
> 1. **Presumption of Constitutionality** — The Court will assume the law is valid unless proven otherwise.
> 2. **Burden of Proof** — On the person challenging the law.
> 3. **Economic Policy Exception** — Courts are reluctant to interfere in economic policy decisions.
> 4. **Two Tests:**
>   - **Intelligible Differentia** — Is there a clear classification?
>   - **Rational Nexus** — Is the classification connected to the objective?
> 5. **Non-Arbitrariness** — Even if classification is valid, the action must not be arbitrary.
> 6. **Arbitrariness** = Decision based on whims and fancies, without reason or logic.

SECTION 7

Key Takeaways, Study Resources, and Examination Tips

7.1 Summary of Doctrinal Evolution

Year	Case	Principle Established	Impact on Article 14/21
1803	Marbury v. Madison	Judicial Review; Constitutional Supremacy	Foundation of judicial power to review executive/legislative action
1962	Kharak Singh v. UP	Life does not mean mere animal existence	Expanded Article 21 beyond physical survival
1970	R.C. Cooper (Bank Nationalization)	Fundamental Rights are interconnected	Laid foundation for the Golden Triangle
1973	E.P. Royappa v. TN	Arbitrariness is the antithesis of equality	Added Non-Arbitrariness as a test under Art. 14
1978	Menaka Gandhi v. UOI	Golden Triangle (Arts. 14, 19, 21); Post-Decisional Hearing	Crystallized interconnection of fundamental rights

---

7.2 Important Judicial Observations to Quote in Answers

1. *"Arbitrariness and equality are sworn enemies. Equality cannot be crippled, cabined, cribbed, or imprisoned in some doctrinal limitations."* — **E.P. Royappa**
2. *"Life does not mean mere animal existence. It includes all those things which make life meaningful and beautiful."* — **Kharak Singh**
3. *"It is emphatically the province and duty of the judicial department to say what the law is."* — **Marbury v. Madison** (Chief Justice John Marshall)
4. *"Mala fide and arbitrariness are easy to claim, but hardest to prove."* — **E.P. Royappa** (Justice P.N. Bhagwati)
5. *"Where there is a right, there is a remedy."* (Ubi jus ibi remedium) — Applied in **Marbury v. Madison**

7.3 Recommended Readings and Cases

- **R.K. Garg v. Union of India** — Read the original case on Indian Kanoon (brief available). This case applies the tests discussed in the Bearer Bonds problem.
- **Srilekha Vidyarthi v. State of UP** — Important case on arbitrariness under Article 14.
- **E.P. Royappa v. State of Tamil Nadu** — AIR 1974 SC 555.
- **Menaka Gandhi v. Union of India** — AIR 1978 SC 597.
- **R.C. Cooper v. Union of India** — The Bank Nationalization Case (11-Judge Bench).
- **Kharak Singh v. State of UP** — 1962 case on Right to Life and Privacy.
- **Marbury v. Madison** — 5 U.S. (1 Cranch) 137 (1803).

7.4 Examination Tips

1. **Structure your answer:** Introduction → Facts (brief) → Legal Provisions → Tests Applied → Case Laws → Conclusion.
2. **Use headings:** "Intelligible Differentia," "Rational Nexus," "Non-Arbitrariness," "Presumption of Constitutionality."
3. **Cite cases correctly:** Mention the name, year, and the principle established.
4. **Quote judicial observations** where relevant — they add weight to your answer.
5. **Do NOT use "colorable legislation" unless it is genuinely applicable.** Misapplying doctrines results in mark deductions.
6. **Distinguish between "arbitrary" and "mala fide":** Both are difficult to prove, but they are distinct concepts.
7. **Remember the Golden Triangle:** Articles 14, 19, and 21 must be read together. Cite *Menaka Gandhi* and *R.C. Cooper*.

End of Lecture Notes — Article 14: Equality & Non-Arbitrariness

"Arbitrariness and equality are sworn enemies."
